NEET's purview. "The Governor does not have the power (to do that). He should send it to the President. That he is refusing to do so is unbecoming of the position he holds. An appointed Governor is sending back bills passed by the elected representatives of eight crore people. Can we say there's democracy in India?" asked the peeved CM, who likened the Governor's role to that of a postman. Two days later, the assembly adopted a bill to create the TN Siddha Medical University, with the CM, not the Governor, as chancellor.

Ravi had raised eyebrows by sending an earlier version of the NEET Bill back to the legislature and publicly sharing the reasons for his action. The assembly quickly passed a second version and sent it back to him. Meanwhile, in Parliament, the DMK's MPs demanded that Ravi be recalled and also introduced a private member's bill to prescribe a time limit for the Governor to act on legislation.

TAMIL NADU'S GOVERNORS HAVE HAD TROUBLED RELATIONS WITH THE DMK SINCE IT FIRST CAME TO POWER IN 1967

"An elected government cannot appoint V-Cs now. This goes against democratic principles," says Stalin. Pointing out that previously V-Cs were appointed in consultation with the state government, the CM says that over the past four years, the Governor's office has been acting as though it has the exclusive rights of appointment. "It began with the earlier Governor Banwarilal Purohit appointing V-Cs, overlooking the tradition of choosing from within the state and taking initiatives without involving the state, as if they were all reporting to the Centre through the UGC," says political commentator N. Sathiya Moorthy, adding that the Centre and the Governors have to be more sensitive and circumspect in handling relations with the states.

In fact, the Madan Mohan Punchhi Commission, set up in 2007 to study Centre-state relations, had recommended that Governors should not have the power to appoint V-Cs as it would lead to a clash of functions and powers. The recommendations were found acceptable by 19 states, including Tamil Nadu. In 2017, the then AIADMK regime did so formally, and after assuming office last year, the DMK reiterated this view to the Centre. The other states are already implementing it. The Gujarat government picked one of the three names recommended by the search committee it formed to identify candidates for a V-C's post. In Andhra Pradesh, Karnataka and Telangana, the V-C is chosen in consultation with the state government.

When a similar conflict had arisen in 1994 when J. Jayalalithaa was CM, then Governor M. Chenna Reddy had declined assent to the state getting the authority to appoint V-Cs, arguing there would be too much political interference in the administration of the universities. At the peak of that row, Reddy and Jayalalithaa exchanged sharp statements on each other. A year on, in April 1995, the Tamil Nadu assembly demanded that Reddy be recalled, charging him with acting unconstitutionally to destabilise an elected government. The resolution proposed by then finance minister V.R. Nedunchezhiyan was taken up by waiving the rule that prohibits discussion on the Governor's conduct on the floor of the House.

With NEET finding resistance primarily due to language—Tamil Nadu insists its students are at a disadvantage in the English medium—the issue touches one of the most emotive themes in the state. Governor Ravi may have to go the extra mile to rebut allegations of stonewalling in the interest of political expediency. ■

STILL PENDING...

- The oldest of the 52 bills pending with the Tamil Nadu Governor and the President of India, as on April 25, is the one to release the seven convicts in the Rajiv Gandhi assassination case. It was adopted on September 10, 2018. Of those 52, just less than a third—14—were passed by the legislative assembly after R.N. Ravi took charge as Governor on September 18, 2021
- Inclusion of Tamil as a subject in Tamil Nadu Public Service Commission (TNPSC) examinations
- Reduction of the tenure of the cooperative societies boards from five to three years
- Enhancing punishment for offences committed against women and children, which would require amending the provisions in Sections 304(B), 354(B), 354(D), 372 and 373 of the Indian Penal Code in its application to Tamil Nadu
- Enhancing salary, allowances and pension for current, former and deceased MLAs, wherever applicable, in Tamil Nadu
- Fixing the minimum pass mark for Tamil language as 45, where passing of the same becomes a prerequisite in the Second Class Language Test conducted by the TNPSC
- Amending the Tamil Nadu Town and Country Planning Act, 1971 (Tamil Nadu Act 35 of 1972), to extend the validity period of planning permission from five years to eight years